

Tentative Rulings for Department 503

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Tentative Ruling

Re: ***Breazeale v. Miller-Phelan, Inc., et al.***
Superior Court Case No. 24CECG01093

Foremost Insurance Company v. Miller-Phelan, Inc., et al.
Superior Court Case No. 25CECG01570

Hearing Date: August 26, 2026 (Dept. 503)

Motion: (1) by Defendant Harley-Davidson Motor Company, Inc. for
Summary Judgment

(2) by Foremost Insurance Company to Consolidate

Tentative Ruling:

To grant defendant Harley-Davidson Motor Company's motion for summary judgment. Defendant is directed to submit to this court, within 10 days of service of the minute order, a proposed judgment consistent with the court's summary judgment order.

To deny Foremost Insurance Company's motion to consolidate, without prejudice. (Cal. Rules of Court, rule 3.350(a)(1)(C).)

Explanation:

Motion for Summary Judgment

In ruling on a motion for summary judgment or summary adjudication, the court must "consider all of the evidence" and all of the "inferences" reasonably drawn there from and must view such evidence and such inferences "in the light most favorable to the opposing party." (*Aguilar v. Atlantic Richfield Co.* (2001) 25 Cal.4th 826, 843.) In making this determination, courts usually follow a three-prong analysis: identifying the issues as framed by the pleadings; determining whether the moving party has established facts negating the opposing party's claims and justifying judgment in the movant's favor; and determining whether the opposition demonstrates the existence of a triable issue of material fact. (*Hutton v. Fidelity National Title Co.* (2013) 213 Cal.App.4th 486, 493.)

The moving party bears the burden of showing the court that the plaintiff "has not established, and cannot reasonably expect to establish, a prima facie case" [Citation.]" (*Miller v. Department of Corrections* (2005) 36 Cal.4th 446, 460.) Furthermore, "[t]o avoid summary judgment, admissible evidence presented to the trial court, not merely claims or theories, must reveal a triable, material factual issue. [Citations.] Moreover, the opposition to summary judgment will be deemed insufficient when it is essentially conclusionary, argumentative or based on conjecture and speculation." (*Wiz Technology, Inc. v. Coopers & Lybrand* (2003) 106 Cal.App.4th 1, 11.) In essence, if the party opposing summary judgment relies on inferences, those inferences

must be “reasonably deducible” from the evidence. (*Joseph E. Di Loreto, Inc. v. O’Neill* (1991) 1 Cal.App.4th 149, 161.)

“Only when the inferences are indisputable may the court decide the issues as a matter of law.... An issue of fact becomes one of law only when ‘the undisputed facts leave no room for a reasonable difference of opinion.’” (*Manuel v. Pacific Gas & Electric Co.* (2009) 173 Cal.App.4th 927, 937.) A court will liberally construe the evidentiary submissions of a party opposing summary judgment, but will strictly scrutinize the moving party’s own evidence, “in order to resolve any evidentiary doubts or ambiguities in plaintiff’s favor.” (*Johnson v. American Standard, Inc.* (2008) 43 Cal.4th 56, 64.) However, “[c]ourts liberally construe declarations submitted in opposition to summary adjudication only to the extent the declarations are admissible.” (*Esparza v. Safeway, Inc.* (2019) 36 Cal.App.5th 42, 57.) Finally, “an issue of fact can only be created by a conflict of evidence.” (*Horn v. Cushman & Wakefield Western, Inc.* (1999) 72 Cal.App.4th 798, 807.) “It is not created by speculation or conjecture.” (*Ibid.*)

Defendant Harley-Davidson Motor Company, Inc. (“Harley-Davidson”) moves for summary judgment, or alternatively summary adjudication of each of plaintiffs’ causes of action, on the basis that the undisputed facts demonstrate there was no defect in the 2022 Harley-Davidson FL TRXSE CVO Road Glide motorcycle driven by decedent Jerry Dale Breazeale II at the time of the accident causing his death. Plaintiffs allege causes of action for strict product liability, negligence and breach of warranty premised on a defect in the motorcycle causing the accident.

Under products liability theory, “[a] manufacturer, distributor, or retailer is liable in tort if a defect in the manufacture or design of its product causes injury while the product is being used in a reasonably foreseeable way.” (*Soule v. GM Corp.* (1994) 8 Cal.4th 548, 560.)

Under the Restatement, a product is defective if it: “(a) contains a manufacturing defect when the product departs from its intended design even though all possible care was exercised in the preparation and marketing of the product; [¶] (b) is defective in design when the foreseeable risks of harm posed by the product could have been reduced or avoided by the adoption of a reasonable alternative design by the seller or other distributor, or a predecessor in the commercial chain of distribution, and the omission of the alternative design renders the product not reasonably safe; [¶] (c) is defective because of inadequate instructions or warnings when the foreseeable risks of harm posed by the product could have been reduced or avoided by the provision of reasonable instructions or warnings by the seller or other distributor, or a predecessor in the commercial chain of distribution, and the omission of the instructions or warnings renders the product not reasonably safe.” (Rest.3d Torts, Products Liability, § 2, p. 14.)

(*Brady v. Calsol, Inc.* (2015) 241 Cal.App.4th 1212, 1218–1219.)

It is undisputed that the motorcycle accident is alleged to have been caused by a sudden loss of engine oil resulting from a defect of the hose connection between the rear oil hose and the line assembly. (UMF No. 6.) It is additionally undisputed that in the year between the purchase of the motorcycle and the accident, decedent had the

vehicle regularly serviced by Fresno Harley-Davidson and there were no complaints related to the rear oil hose separating from the assembly. (UMF Nos. 9, 10.) Defendant additionally submits as undisputed fact that there were no complaints of oil leaking from the vehicle until after an oil change and series of modifications to the motorcycle were performed at Cycle Masters, Inc. nine days before the accident. (UMF No. 11, 12.) The service work included removing the oil lines from the manifold and manipulation of the rear oil hose and line assembly that are alleged to be defective. (UMF No. 15.) Decedent brought the motorcycle back to Cycle Masters, Inc. after the modifications were performed having noticed an oil leak. (UMF No. 18.) The motorcycle was evaluated and a leak from an oil-cooler hose at the front of the motorcycle was addressed before the motorcycle was picked up by decedent on September 1, 2023. (UMF No. 18-22.) The accident ultimately resulting in the death of decedent occurred on September 2, 2023. (UMF No. 24.)

Defendant asserts these undisputed facts demonstrate the plaintiffs cannot establish the existence of a defect in the manufacture or design of the motorcycle and the intervening modifications by Cycle Masters, Inc. preclude finding causation due to any alleged defect in the motorcycle. Defendant further asserts plaintiffs' factually devoid discovery responses with respect to the existence of a defect and causation support the conclusion that plaintiffs have no evidence to support their causes of action and cannot reasonably obtain such evidence. (UMF Nos. 25-33; *Union Bank v. Superior Court* (1995) 31 Cal.App.4th 573, 590.)

The court finds defendant Harley-Davidson has met its burden in moving for summary judgment of the complaint.

Plaintiffs oppose the motion, challenging whether the cited evidence supports the stated fact (UMF Nos. 10, 11, 14, 15), improperly objecting to the evidence within the separate statement (UMF No. 16), and disputing the characterization of the material facts (UMF Nos. 16, 18, 20, 22, 23, 24). The court finds none of these challenges are supported with a reference to evidence in support of finding a dispute of material fact. (Code Civ. Proc., § 437c, subd. (b)(3).)

Plaintiffs attempt to assert a triable issue of fact as to the existence of a defect through the expert opinion of Peter Sullivan, a vehicle systems testing and analysis expert. Mr. Sullivan opines the motorcycle at issue "was defective as designed and manufactured," "inadequate service instructions and inadequate technical bulletins or publications" were provided by Harley-Davidson, and that "Harley-Davidson's failure to provide a more durable and reliable hose clamp was a substantial factor in causing the subject collision" (Sullivan Decl. ¶¶ 5, 7.) Mr. Sullivan identifies a spring clamp in the oil coolant line assembly and opines that defendant knew of instances where the clamp failed to ensure drain hose retention. (*Id.*, ¶¶ 9, 13.) Mr. Sullivan additionally attests to a high number of replacement spring clamps having been distributed by Harley-Davidson as evidence that the spring clamps were not sufficient for securing the oil drain hoses making the oil coolant line assembly defective. (*Id.*, ¶ 13.) Defendant's objections to Mr. Sullivan's conclusions as speculative are sustained. (Obj. Nos. 1-3, 6-7.)

Mr. Sullivan's declaration is devoid of factual support for his conclusions that the motorcycle at issue contained any type of defect or that said defect caused the

decedent's accident. Speculation as to the relationship between the volume of replacement clamps distributed and the hoses to which they attach will not support the conclusion that the clamp was defective or that more warranty claims regarding failure of spring clamps must exist but have not been produced in discovery. Speculation that a design change in the coolant line assembly clamp means there are documents regarding the change that have not been produced in discovery is insufficient to raise a triable issue of material fact to defeat summary judgment. (Sullivan Decl., ¶¶ 16-20¹.)

Plaintiffs request a continuance pursuant to Code of Civil Procedure section 437c, subdivision (h) for additional depositions of defendant's employees regarding notice, defect, and causation. Counsel suggests defendant is withholding relevant warranty claims from discovery that would support their theory of an inadequately sealed connection at the oil hose progressively worsens from a seep to a full detachment. (Yoka Decl., ¶ 4.) Counsel's theory is not consistent with the undisputed facts of this case where the oil seeping appeared only after modifications performed by Cycle Masters, Inc. and the detachment occurred within days of the initial oil seepage. (UMF Nos. 18-22, 24.) Plaintiff's additional facts indicate the subject spring clamp was never detached during the modifications performed by Cycle Masters, Inc. and was secure at the conclusion of their work. (AMF Nos. 56-60, 66.) There is no evidence to suggest there was progressive wear on the clamp at issue. It does not appear from the affidavit that the further discovery sought to pursue this new theory of progressive wear on the clamp is consistent with the undisputed facts of the case and therefore necessary to oppose this motion.

Plaintiffs' opposition is limited to inferences and speculation that additional evidence to support the existence of a defect in the use of a spring clamp is being withheld by defendant. These inferences are unsupported by the evidence that the spring clamp at issue was confirmed to have been secure in the days before the incident giving rise to the complaint. The court finds plaintiffs have not met their burden to raise a dispute of material fact. As a result, Defendant Harley-Davidson's motion for summary judgment of the entire complaint against it is granted.

Motion to Consolidate

California Rules of Court, rule 3.350(a)(1)(C) requires the moving party to file the Notice of Motion to Consolidate in both cases proposed to be consolidated. The supporting memorandum of points and authorities, declarations and other supporting papers only need to be filed in the lower-numbered case. Here, Foremost Insurance Company neglected to file the Notice of Motion in case no. 25CECG01570 as required. (Cal. Rules of Court, rule 3.350(a)(1)(C).) Accordingly, the motion is denied without prejudice.

Application to Seal

The court is aware of defendant Harley-Davidson Motor Company, Inc.'s application to seal certain documents filed with the opposition to the motion for summary judgment. The application states that it will be heard on August 26, 2026, however this

¹ Defendant's objection no. 9 to paragraphs 16 through 20 of the Sullivan declaration is sustained.

Pursuant to California Rules of Court, rule 3.1312(a), and Code of Civil Procedure section 1019.5, subdivision (a), no further written order is necessary. The minute order adopting this tentative ruling will serve as the order of the court and service by the clerk will constitute notice of the order.

Issued By: JS on 8/24/2026.
(Judge's initials) (Date)